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## Appeal Decision

Hearing held on 25 August 2026

Site visit made on 25 August 2026

**by M Clowes BA (Hons) MCD PG CERT (Arch Con) MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 22<sup>nd</sup> September 2026

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### Appeal Ref: 6011055

#### Victoria Vaults, 47-49 Nunnery Lane, York YO23 1AB

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
  - The appeal is made by Mr Nabeel Hanif [The Vaults (York)] against the decision of City of York Council.
  - The application Ref is 25/01793/FUL.
  - The development proposed is the change of use of ground floor from public house (sui generis) to cafe (Class E).
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### Decision

1. The appeal is dismissed.

### Applications for costs

2. Prior to the Hearing, an application for costs was made by Mr Nabeel Hanif [The Vaults (York)] against the City of York Council. This application is the subject of a separate decision.

### Preliminary Matters and Main Issues

3. The address of the appeal site in the banner headings above follows agreement of the parties at the Hearing that it accurately identifies the site location.
4. The Hearing dealt simultaneously with a counterpart appeal reference 6010035. Whilst there are consistent themes between the cases, there are differences and so for clarity, I have produced different appeal decisions for each case.
5. The Council submitted a piece of late evidence during the Hearing to confirm that the appeal site was listed as an Asset of Community Value (ACV) on 11 August 2026. The appellant had already notified me of such in writing prior to the Hearing and the acceptance of this information did not therefore prejudice any party.
6. A revised National Planning Policy Framework (the Framework) was published on 17 August 2026 during the appeal process. The main parties were given the opportunity to comment on the implications of the revision in relation to the proposal, such that I am satisfied that no prejudice has occurred.
7. Having regard to the written evidence and the discussions at the Hearing, the main issues are i) whether the proposed café would result in the loss of a community facility and cultural venue; and if so, ii) whether that loss would be justified having regard to the evidence of viability and marketing and to the development plan and national planning policy.

## Reasons

### *Community Facility*

8. The Victoria Vaults comprises a 2-storey building fronting Nunnery Lane within York City Centre, just outside of the historic walls. The parties disagree on the proper characterisation of the existing use. Nonetheless, it was last operated as a public house/live music venue with accommodation above. Following the appellant's purchase of the appeal site, the commercial use ceased and the first floor is currently rented out as a short-term holiday let.
9. Policy HW1 of the City of York Local Plan (CYLP) 2025, seeks to protect existing community facilities, or facilities last used for community purposes [my emphasis]. Policy D3 seeks to sustain, enhance and add value to York's cultural character and supports development that does not cause the loss of cultural facilities, activities, services, venues or spaces that deliver cultural opportunities. Together, these policies reflect the importance attached by the development plan to the retention of facilities which contribute to community life, social interaction and cultural wellbeing.
10. As discussed above, Policy HW1 seeks to protect community facilities and permits their loss only where specific criteria are satisfied. The objectives of the policy are therefore consistent with Policy HC6 of the revised Framework, which seeks to guard against the unnecessary loss of valued community facilities and services. Consequently, I afford substantial weight to Policy HW1.
11. There is no dispute that the appeal building historically operated as a public house. Whilst the appellant is entitled to place weight on the Council's earlier decision to remove the appeal site from the ACV register in November 2025, that position has subsequently been reversed by the re-listing of the property as an ACV prior to the Hearing. The evidence before me does not include the detailed assessments which informed either ACV conclusion. I am aware that the appellant has requested a review of the most recent listing decision. Nonetheless, the appeal site remains listed as an ACV at the time of my determination of this appeal.
12. In any event, the issue before me is not whether the property satisfies the statutory tests for inclusion on the ACV register, but whether the proposal complies with Policy HW1 of the CYLP. The ACV regime and the planning system serve different purposes and apply different statutory and policy tests. Policy HW1 is not restricted to assets listed as ACVs, nor does it provide that a facility ceases to be a community facility once removed from the register. Rather, it applies more broadly to existing and recently used community facilities, with public houses expressly identified within the supporting text as an example of such facilities.
13. Accordingly, whilst I have taken both the de-listing and subsequent re-listing into account as material considerations, neither is determinative of whether the appeal site should be regarded as a community facility for the purposes of Policy HW1. My conclusion derives from the nature of the use that was being undertaken at the appeal site immediately prior to its closure, irrespective of its status under the separate ACV regime. That is a public house that provided a venue for social interaction and community activity as clearly expressed in the representations of interested parties.

### *Cultural Venue*

14. The appellant submits that no separate planning permission exists for the use of the appeal site as a music venue and that it should only be considered as a public house. In this regard, he contends that it should not be viewed as a cultural facility.
15. The Council contend that the appeal site functioned as both a public house and a dedicated live music venue before its closure. The premises hosted regular ticketed live music events 3 nights per week and contained a dedicated stage area, together with sound and lighting equipment associated with such events. I have heard and read persuasive evidence from interested parties that the venue provided opportunities for local and emerging musicians (particularly bands rather than soloists), promoters, sound technicians and other creative practitioners to develop and showcase their skills before live audiences, in a relatively small venue. It also hosted national and international touring bands and in doing so, it attracted visitors from a wider area than the local catchment alone.
16. Detailed representations from individuals and local groups including York Music Venue Network, The Campaign for Real Ale (CAMRA), the Campaign for Pubs and Clements Hall Local History Group, consistently describe the premises as an important and dedicated venue for live music, that was publicly recognised as part of York's grassroots music infrastructure. In this regard, I note that it received support through the Government's Cultural Recovery Fund. It was also the recipient of funding from the City of York Council's grassroots venue support grants. Whilst not determinative, the award of specific cultural funding lends support to the view that the premises performed an established cultural function in addition to its role as a public house.
17. I acknowledge that the appellant has identified a large number of venues in York (circa 40) that are said to host live music. However, the Council and interested party evidence indicates that very few offer a comparative grassroots music function due to occupancy levels, lack of dedicated performance space, frequency of events and lack of ticketing. Whilst many of those venues provide some form of live music at different intervals, their primary function is as food and/or drink establishments, supplemented by occasional open-mic or live music events, rather than a regular programme of ticketed performances.
18. The evidence before me, including discussions at the Hearing, indicates that the Victoria Vaults was one of only 2 such premises for dedicated live music within the city centre, the other being The Crescent. However, the Crescent is understood to be a larger venue with a capacity of around 300 people. The Fulford Arms was also discussed at the Hearing, but it is located outside of the city centre. In addition, there was no conclusive evidence that the FortyFive Vinyl Café performs a similar role as a dedicated live music venue with specialist facilities and performance space suitable for full bands, such that I am unable to consider it comparable.
19. Even if some of the venues identified by the appellant could be regarded as providing a broadly similar offer, they amount to no more than a very small number of alternatives. I am therefore satisfied that the Victoria Vaults fulfilled a specific and relatively uncommon role within York's grassroots music scene, and that there is insufficient alternative provision of this particular type of cultural venue within the local area to justify its loss. Whether or not the premises was operating beyond its

licensed capacity and lawful planning use, I find that it made a meaningful contribution to York's cultural life and possessed a level of cultural value beyond that normally associated with a public house alone. In reaching this view, I note that at the Hearing Mr Waterhouse retracted the conclusion within the Stapleton Waterhouse Report that the loss of Victoria Vaults as a live music venue would not represent a major loss to York's cultural provision, explaining that he was not qualified to make such an assessment. I therefore attach little weight to that particular conclusion of the report.

20. It is not for me in considering this S78 appeal to determine the lawful use of the appeal site. Nor is it necessary to reach a definitive conclusion regarding the precise planning status of the music-related activities undertaken from the premises. Taking all of the information presented in the round, I am satisfied that whilst the Victoria Vaults operated as a public house, it also functioned as a venue that delivered cultural opportunities through the provision of live music events, thereby engaging the objectives of Policy D3.
21. Furthermore, Policy HC6 of the Framework expressly identifies both public houses and cultural venues as examples of key community facilities. The dual function of the appeal site therefore reinforces, rather than undermines the conclusion that the objectives of both Policies HW1 and D3 are relevant to the determination of the appeal.
22. The proposed conversion of the ground floor into a café would prohibit the public house and live music venue use.

*Whether the Proposal Would Result in a Loss*

23. The appellant contends that the proposed café should be regarded as a community facility, thereby meaning that there would be no overall loss of such a use. I have carefully considered this argument. I acknowledge that cafés can provide opportunities for social interaction and informal meeting. However, the mere fact that a commercial premises is open to the public does not necessarily mean that it should be regarded as a community facility for the purposes of Policy HW1.
24. In this case, there is little evidence before me regarding the specific operation of the proposed café beyond its use for the sale of food and drink. There is no substantive evidence that it would host community groups, provide meeting facilities, support community programmes, accommodate particular social functions, or otherwise perform a community role beyond that ordinarily associated with a commercial café business. Whilst members of the public would be able to use the premises, that factor alone is insufficient for me to conclude that it would provide a replacement community facility equivalent in nature to the previous use.
25. I also note that, at the time the application was being considered, reliance was placed upon the proposed occupation of the premises by Rockello. This offer has subsequently been withdrawn. Although there is no requirement to demonstrate an end user, there is still no evidence regarding the manner in which the proposed café would operate or the extent to which it would provide any identifiable community benefits beyond those associated with a conventional commercial café. Accordingly, on the evidence before me, I am not persuaded that the proposed café would constitute a replacement community facility for the purposes of Policy

HW1. Rather, I find that it would principally operate as a commercial food and drink business.

26. I have nevertheless carefully considered the appeal decision relating to The Bay Horse and the Council's decision at the Murton Arms. I do not read either decision as establishing that a café must invariably be regarded as a community facility. Whether a particular use fulfils such a role is necessarily a matter of fact and degree in the circumstances of each case. In the Bay Horse decision, the Inspector found that the proposal would provide a replacement community facility and make a positive contribution to the range of facilities available locally, in circumstances where there were no other coffee shop in the immediate surrounding area. Likewise, the Murton Arms decision turned upon the particular circumstances of a village location where the Council considered that the proposed café would continue to provide a facility for local residents to meet and socialise.
27. The circumstances before me are materially different. The appeal site occupies an accessible city centre location close to Bishopthorpe Road and Micklegate, where a wide range of cafés, restaurants and other meeting places already exist. The proposal would not therefore obviously meet a gap in such provision to warrant consideration as a community use. Neither The Bay Horse nor the Murton Arms decisions lead me to a different conclusion.
28. In any event, even if I were to conclude that the proposed café would constitute a community facility, that would not resolve the separate issue of the loss of a cultural venue as I have already discussed. There is no evidence before me that the proposed café would provide equivalent cultural facilities, activities or services. Importantly, neither the Bay Horse nor Murton Arms examples involved the loss of a dedicated live music venue. Consequently, the proposal would result in the loss of a community and cultural venue and therefore engage the objectives of Policies D3 and HW1 of the CYLP.

#### *Whether the Loss is Justified*

29. Criteria iv) of Policy HW1 would allow the loss of a commercial community facility where evidence is provided demonstrating that the facility is no longer financially viable with no market interest. Paragraph 6.10 of the supporting text explains that evidence of marketing for a minimum of 2 years without success will be required, together with a marketing report and an open book-based viability appraisal, demonstrating that the facility is not viable and could not reasonably be made so. Though not a requirement of the policy itself, the explanatory text nonetheless sets out the type of evidence considered necessary to demonstrate policy compliance.
30. In terms of viability, the appellant relies on a report produced by Nabarro McAllister and the trading experience of the most recent venue operator. The evidence indicates that the business experienced trading losses, required personal injections of capital and faced difficult trading conditions. Information has also been provided regarding operating costs associated with the venue and the experiences of the previous operator, albeit this is limited in scope. The Nabarro McAllister report concludes that the premises are not financially viable as a public house and estimates that substantial investment would be required to return the ground floor to an operational condition.

31. The evidence falls short of constituting the open book viability appraisal anticipated by the supporting text to Policy HW1. Whilst it demonstrates that the most recent operation of the venue was unsuccessful, I am not persuaded that it demonstrates that the use itself could not reasonably be made viable. Little evidence has been provided regarding whether the venue could be made viable under a different ownership structure, management approach or business model, nor has any benchmarking been undertaken against comparable venues. Consequently, it is unclear why the Nabarro McAllister report concludes that the premises are inherently unviable as a public house and live music venue, rather than demonstrating that the previous business was unsuccessful. Similarly, the suggested refurbishment cost of £250,000 is unsupported by any detailed calculations or cost evidence.
32. A number of interested parties contend the venue became increasingly underused and was only open intermittently before the appellant took possession. Whilst understanding the difficulties associated with operating such uses viably, I cannot confidently conclude that the poor financial performance was attributable to the use itself being incapable of operating viably in this location, rather than the manner in which the previous business was operated and managed.
33. Turning to the marketing evidence, I have had regard to both the Carter Towler and Barry Crux exercises. The Carter Towler particulars marketed the property not only as a public house and music venue, but also as an 'excellent medium term redevelopment opportunity.' A purchase resulted from that exercise, namely by the appellant, who explained at the Hearing that the property was acquired as an investment opportunity. Whilst the eventual sale price was below the original asking price, there is no persuasive evidence before me that the agreed figure represented an appropriate market value for the continuation of the existing use, rather than reflecting, at least in part, the site's redevelopment potential.
34. The subsequent Barry Crux exercise took a different approach. By that stage the first-floor accommodation had been refurbished as a short-term holiday let and excluded from the letting particulars, with only the ground floor being marketed. The appellant contends that the first floor has long been a separate flat. However, irrespective of its precise planning status, the evidence indicates that the venue previously operated with residential accommodation above. The Carter Towler particulars marketed the whole property, including the first-floor accommodation, and the Nabarro McAllister report similarly refers to the premises as a public house with a manager's flat above. The Barry Crux exercise therefore tested the market for occupation of the ground floor alone, rather than for the venue in the form in which it had most recently operated.
35. This distinction is important because the evidence suggests that at least some prospective operators considered the availability of the upper floors to be material to their interest in the property. Stapleton Waterhouse similarly identified the exclusion of the flat as a potential issue when assessing future operation of the premises as a public house and music venue.
36. Taken together, the two marketing exercises provide useful evidence regarding demand for the premises. However, they do not demonstrate that the property was marketed solely for continuation of its established use as a public house and live music venue with accommodation above, or that it was consistently valued by reference to that use. Stapleton Waterhouse identified concerns that the valuation

was high and that further marketing of the property as a whole would be appropriate in order to fully test the market. The existence of some interest in the property, notwithstanding the asking price, does not demonstrate that the valuation was appropriate or that all potential demand had been captured.

37. Even if that was not the case, I am not persuaded that the evidence demonstrates an absence of market interest. The Barry Crux marketing exercise generated a number of enquiries and viewings, including interest from parties wishing to continue public house, hospitality and music-related uses. Whilst they did not lead to funded offers, they are nevertheless indicative of ongoing market interest in the facility. Furthermore, the absence of the first-floor accommodation from the marketing exercise appears to have reduced interest from at least some prospective operators. Consequently, I cannot be satisfied that the marketing undertaken would necessarily have identified all potential interest in retaining the facility in its established form.
38. I acknowledge that the Framework's recent revision post-dates the adoption of the local plan. Policy HC6 resists the loss of key community facilities and public service infrastructure, unless amongst other things, it can be demonstrated that there is no reasonable prospect of the use being retained. In the case of public houses, the policy states that evidence should be provided demonstrating that reasonable steps have been taken to market the property for its *existing use* [my emphasis] without success for a period of at least 12 months. This differs from the supporting text to Policy HW1 of the CYLP which states a minimum of 2 years marketing.
39. I am not convinced by the Council's position that the appeal site ceases to be a public house for the purpose of the Framework simply because the venue is also considered to be a cultural venue in this instance. Importantly, Policy HC6 of the Framework treats marketing as evidence relevant as to whether there is a reasonable prospect of retention, rather than establishing a determinative test based solely upon the passage of a specified period of time. Any tension between the Framework and Policy HW1 relates principally to the guidance contained within the supporting text, rather than the operative wording of the policy itself.
40. In any event, I do not consider it necessary in this case to reach a definitive conclusion regarding the weight to be attached to the 2-year marketing expectation in the supporting text, nor to determine whether the more recent 12-month period in the Framework alters that position. This is because in both policies, the marketing periods are evidential rather than determinative.
41. At the Hearing Mr Waterhouse was clear that the only way to fully expose the appeal site to market is to offer the whole property for sale and to let, based on a valuation of the existing use only. That has not occurred, irrespective of the duration of the marketing to date. My conclusions do not turn on the duration of the marketing alone. Rather, the central question is whether the evidence demonstrates that there is no reasonable prospect of the facility being retained. I have found that not to be the case.

### Conclusion

42. Drawing these matters together, I find that the Victoria Vaults functioned as both a community facility and cultural venue immediately prior to its closure. Whilst the proposed café would introduce an alternative commercial use, I am not persuaded

on the evidence before me that it would provide an equivalent replacement community facility, nor would it replicate the cultural function performed by the appeal site. The proposal would therefore result in the loss of a community facility for the purposes of Policy HW1 and a cultural venue for the purposes of Policy D3.

43. I have carefully considered the viability and marketing evidence submitted in support of the proposal. Whilst the most recent operation of the venue was commercially unsuccessful, I am not satisfied that the evidence demonstrates that the facility could not reasonably be made viable, nor that there is no reasonable prospect of its retention, having regard to the market interest identified. Consequently, I find that the requirements of Policy HW1(iv) have not been met.
44. Whilst Policies D3 and HW1 address different aspects of the appeal proposal, there is a clear overlap between them in this case. Having found that the evidence does not satisfactorily justify the loss of the community facility, I am likewise not persuaded that sufficient justification has been provided for the loss of the cultural venue. I therefore find conflict with Policy D3. Consequently, I find that the appellant has failed to demonstrate that the loss of the community facility and cultural venue would be justified. The proposal would therefore conflict with Policies HW1(iv) and D3 of the CYLP as set out above. In reaching that conclusion, I find that the proposal would conflict with Policy HW1(iv) irrespective of whether the relevant marketing benchmark is 12 months or 2 years.

## **Other Matters**

### *Heritage Assets*

45. The appeal site lies immediately adjacent to, but outside, the Central Historic Core Conservation Area (CHCCA). The significance of the CHCCA derives from the exceptional survival of York's historic urban form, its medieval street pattern, the prevalence of historic buildings of varying periods and styles, the relationship between buildings, streets and spaces, and the contribution of landmark heritage assets including, but not limited to, the City Walls and York Minster. The contribution made by the appeal site to the significance of the CHCCA is therefore primarily derived from its role within the surrounding townscape and urban context.
46. The appeal site is also located within the setting of the Grade I listed and Scheduled Ancient Monument (SAM) City Walls including Victoria Bar<sup>1</sup>, and the Grade II listed The Moat House opposite<sup>2</sup>. The significance of the SAM and listed building comprising the City Walls and Victoria Bar derives principally from its exceptional evidential, historic and architectural value as one of the most complete surviving medieval town defences in England. The monument provides tangible evidence of York's historic development, illustrates the evolution of the city's fortifications over many centuries and remains an important landmark contributing to the city's identity and historic character. Its significance is also derived from its prominence within the townscape and the ability to appreciate the monument as part of the historic approach to the city.
47. The significance of The Moat House derives from its special architectural and historic interest as a mid-Victorian building and its contribution to the historic townscape of Nunnery Lane.

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<sup>1</sup> List Entry No 1259262.

<sup>2</sup> List Entry No 1257034.

48. Whilst the appeal site does not form part of the SAM, it lies within the urban environment in which the City Walls, Victoria Bar and The Moat House are experienced. Its contribution to significance is therefore primarily contextual, arising from its role within the surrounding townscape rather than through any direct historical or functional relationship with the designated heritage assets.
49. The proposal would retain the existing building with the frontage remaining largely unchanged. In this regard, the relationship with the designated heritage assets would remain neutral post change of use. I therefore find that the proposal would preserve the significance of the SAM and the settings of the listed City Walls and Victoria Bar, and The Moat House. It would preserve the contribution that the appeal site presently makes to the setting of the CHCCA.
50. Consequently, the proposal would accord with Policies D4 and D5 of the CYLP. In reaching this conclusion, I have had special regard to the desirability of preserving the setting of the listed buildings, as required by section 66(1) of the Planning (Listed Buildings and Conservation Areas) Act 1990.

### *Other Decisions*

51. I have had regard to the previous appeal decisions referred to by the appellant including the 2 Jubilee decisions. In the 2022 appeal the ground floor public house was being retained with residential accommodation above<sup>3</sup>. It did not therefore result in the loss of community facilities.
52. Whilst there are similarities with the proposal in the 2025 Jubilee case<sup>4</sup>, the property had been vacant and marketed for a substantial period. The Inspector was satisfied having regard to the particular viability and marketing evidence before him, including extensive marketing over a prolonged period and his finding that there was no compelling evidence of meaningful market interest in the continued operation of a public house from the site. Similarly, in the Pinkuah Arms decision the Inspector concluded that a future public house use was demonstrably unviable, notwithstanding the absence of a marketing exercise<sup>5</sup>. However, that finding was made with regard to it being a rural public house, the catchment population, history, vacancy period and the specialist viability evidence before them. It was also located within a different local authority area and therefore subject to different local planning policies.
53. In this case, I have found that the viability evidence falls short of demonstrating that the use could not reasonably be made viable and, importantly, I am not satisfied that the marketing evidence demonstrates an absence of market interest. Moreover, neither the Jubilee nor Pinkuah Arms performed the same established cultural function as I have found existed at the Victoria Vaults. Consequently, these decisions do not alter my conclusions in the circumstances of this appeal.
54. Likewise, the Magnet approval<sup>6</sup> arose in a different policy context where the main issue related to whether the harm arising from the demolition of a Non-Designated Heritage Asset would be outweighed by the benefits of the scheme, rather than whether the loss of a community use was acceptable.

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<sup>3</sup> Appeal decision APP/C2741/W/21/3285000.

<sup>4</sup> Appeal decision APP/C2741/W/25/3362935.

<sup>5</sup> Appeal decision APP/Z1510/W/24/3352799.

<sup>6</sup> Appeal decision APP/C2741/W/22/3305435.

55. I have had regard to the consistency principle arising from *North Wiltshire DC v Secretary of State for the Environment*. However, consistency does not require identical outcomes where the evidence and circumstances differ. Whilst I have carefully considered the appeal decisions relied upon by the appellant, my findings are based on the particular evidence before me in this case regarding the role of the Victoria Vaults, the viability information submitted, the marketing undertaken and the application of policies within the development plan. The previous appeal decisions do not affect my findings.

### *Other Considerations*

56. The appellant contends that refusal of planning permission would increase the likelihood of the site being redeveloped for residential purposes. However, the proposed residential redevelopment forms the subject of a separate appeal decision. Planning permission has not been granted for that proposal. Therefore, it does not constitute a fallback position.
57. Several supporters contend that the premises no longer functioned as a community asset, that demand for its previous use was limited, and that a café would better serve local needs and be more compatible with its surroundings. Those matters have been considered in the context of the full body of evidence before me, including the site's previous function as a community use and its cultural role within the city. Having weighed all of that evidence, I have reached a different conclusion for the reasons explained above.
58. The appellant also raised concerns regarding the conduct and involvement of certain individuals in the consideration of the application. However, this is a matter for the parties involved. My conclusions are based upon my own independent assessment of the planning merits of the appeal.

### **Planning Balance and Conclusion**

59. The Council's comments on the revised Framework focused principally on conflict with Policy HC6<sup>7</sup>. However, Policy S4 requires a balancing exercise between the benefits of development within a settlement and any adverse effects. Accordingly, I have undertaken my own assessment of the benefits and harms of the proposal having regard to the Framework as a whole.
60. Policy S4 of the Framework establishes a presumption that development proposals within settlements should be approved, unless the benefits of doing so would be substantially outweighed by any adverse effects when assessed against the national decision-making policies in the Framework.
61. The appeal site occupies a sustainable location close to services, facilities and public transport opportunities within the city centre of York. The proposal would result in the efficient re-use of the ground floor area of an existing building and would provide employment opportunities associated with the operation of the café. These benefits attract moderate positive weight.
62. I have found that the proposal would preserve the significance of the listed buildings and SAM and would not harm the significance of the CCHCA through development within its setting. Accordingly, no heritage harm would arise and this matter weighs neither for, nor against, the proposal.

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<sup>7</sup> With reference to the Council's email to the Inspectorate dated 9 September 2026.

63. Against the benefits, I have found that the proposal would result in the unjustified loss of an important community facility and cultural venue. Policy HC6 of the Framework affords protection to such uses and seeks to resist their loss unless specified criteria are satisfied. I have had regard to the appellant's submissions that there is no reasonable prospect of the existing use being retained and that adequate alternative provision exists elsewhere<sup>8</sup>. However, there is no evidence before me that the safeguarding of this community and cultural use is no longer appropriate, or that there is no reasonable prospect of the existing use being retained. Consequently, I find that the requirements of Policy HC6 have not been met and that the proposal would conflict with that policy. In this regard, the proposal would give rise to the type of substantial adverse impact referred to in Policy S4(2)(a)(i) of the Framework. I therefore attach substantial weight to the adverse effects.
64. Taking all matters into account, I conclude that the substantial adverse impact of the proposal would substantially outweigh the moderate benefits arising from the re-use of part of an existing building and employment opportunities. Accordingly, having applied Policy S4 of the Framework, I find that it does not indicate that planning permission should be granted.
65. The proposal would therefore conflict with the development plan and there are no material considerations, including the approach of the Framework, that indicate a decision should be made other than in accordance with the development plan. Accordingly, the appeal is dismissed.

*M Clowes*

INSPECTOR

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<sup>8</sup> Inclusive of the appellant's email dated 10 September 2026 regarding the revised Framework.

## **APPEARANCES**

### **FOR THE APPELLANT:**

|                 |                     |
|-----------------|---------------------|
| Nabeel Hanif    | Appellant and Owner |
| Tanveer Hussain | Owner               |

### **FOR THE LOCAL PLANNING AUTHORITY:**

|                    |                          |
|--------------------|--------------------------|
| Gareth Arnold      | Development Manager      |
| Sophie Prendergast | Planning Officer         |
| David Waterhouse   | Stapleton Waterhouse Ltd |

### **INTERESTED PARTIES:**

|                    |                                                                                |
|--------------------|--------------------------------------------------------------------------------|
| Cllr Peter Kilbane | Ward Councillor for Micklegate and<br>Executive Member for Economy and Culture |
| Mr Robinson        | On behalf of York Music Venue Network                                          |